

TENTATIVE RULINGS

DEPT C34

JUDGE H. SHAINA COLOVER

LAW AND MOTION IS HEARD ON THURSDAY AT 1:30 P.M.

Tentative Rulings: The Court endeavors to post tentative rulings on the Court's website by 10:00 a.m. in the morning, prior to the afternoon hearing. However, ongoing proceedings may prevent posting by that time. Do not call the Department for tentative rulings if none are posted. Tentative rulings may not be posted on every case. The Court will not entertain a request to continue the hearing or the filing of further documents once a tentative ruling has been posted.

Submitting on Tentative Rulings: If all parties involved in the subject matter intend to submit on the tentative ruling and do not desire oral argument, then *counsel for each such party shall call* and advise the Courtroom Clerk or Courtroom Attendant by calling **(657) 622-5234** before 12:00 pm on the day of the hearing. If all sides submit on the tentative ruling and so advise the Court, the tentative ruling shall become the Court's final ruling and the prevailing party (or whomever the Court assigns in the ruling) shall give notice of the ruling and prepare an order for the Court's signature, if appropriate, under Cal. R. Ct. 3.1312.

Non-Appearances: If no one appears for the hearing and the Court has not been notified that all parties submit on the tentative ruling, the Court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The Court also might make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Remote and In-Person Proceedings. Department C34 (NOT N6- Please no reserving/filing of motions in N6) conducts non-evidentiary proceedings, such as law and motion, remotely, by Zoom videoconference pursuant to CCP §367.75 and Orange County Local Rule (OCLR) 375. All counsel and self-represented parties appearing remotely for the Law and Motion Calendar must check-in online through the Court's website at <https://www.occourts.org/media-relations/civil.html>, prior to the commencement of their hearing. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. Parties preferring to appear in-person for law and motion hearings may do so pursuant to CCP §367.75 and OCLR 375.

Court Reporters: Official court reporters (i.e., court reporters employed by the Court) are NOT typically provided for law and motion matters in this Department. If a party desires a record of a law and motion proceeding, it must provide a court reporter. The Court's policy on privately retained court reporters is available on the Court's website at: [Privately-Retained Court Reporter Policy](#).

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. **No filming, broadcasting, photography, or electronic recording is permitted of the video session pursuant to California Rules of Court, rule 1.150 and OCLR 180.**

TENTATIVE RULINGS

Date: September 24, 2026

#	Case Name	Tentative
1.	30-2023-01363497 Yang vs. California TD Specialists	1. Motion to Set Aside/Vacate Default Defendant Prado Investments, LLC (“Prado Investments”) moves for an order setting aside default entered against it on 3/16/26 by plaintiff Pi-Fang Yang, Trustee of the YPF Trust (“Plaintiff”). On 9/2/26, after default was entered, Plaintiff filed a Second Amended Complaint (SAC) to add a cause of action for fraud, deceit, and concealment against all defendants. This new cause of action is a substantive change to Plaintiff’s pleading. “When amendments to a complaint contain substantive changes . . . a defaulting defendant against whom the court has not yet entered judgment has the right to appear in the action to answer the amended complaint.” (<i>Crestmar Owners Assn. v. Stapakis</i> (2007) 157 Cal.App.4th 1223, 1230-1231.) Because Prado Investments must be granted the right to appear in the action and file a responsive pleading to the SAC, the Motion to Set Aside Default is GRANTED. Moving party to give notice.
2.	30-2024-01396485 Quezada vs. Ford Motor Company	1. Motion for Summary Judgment and/or Adjudication 2. Motion for Terminating Sanctions <u>Motion for Summary Judgment/Adjudication</u> Defendants Ford Motor Company and Ken Grody Ford (“Defendants”) move for summary judgment as to all five causes of action alleged in the Complaint, which include the: (1) first cause of action for violation of Civil Code section 1793.2(d) against Defendant Ford, (2) second cause of action for violation of Civil Code section 1793.2(b) against Defendant Ford, (3) third cause of action for violation of Civil Code section 1793.2(a)(3) against Defendant Ford, (4) fourth cause of action for breach of the implied warranty of merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5 against Defendant Ford, and (5) fifth cause of action for negligent repair against Defendant Ken Grody. Plaintiffs Linda Quezada and Poo’s Playhouse, LLC (“Plaintiffs”) oppose the motion. A. STANDING First, Defendants argue that Plaintiff Linda Quezada does not have standing to sue Defendants because she did not purchase the vehicle and is not a party to the contract. Defendants argue that only Plaintiff Poo’s Playhouse, LLC has standing to sue since it is the party that purchased the vehicle at issue. Plaintiff Linda Quezada does not dispute that Plaintiff Poo’s Playhouse, LLC “entered into the Retail Installment Sale Contract with Ken Grody Ford on March 16, 2022.” Still, Plaintiff argues that she

has standing because, as the sole member and owner of Poo’s Playhouse, LLC, “she personally selected, negotiated, and took delivery of the Vehicle, was its primary driver, presented it for every repair, and bore the consequences of every defect. (Quezada Decl. ¶¶ 2–3, 14–15) She is a real party in interest, and at a minimum whether she qualifies as a “buyer” under the Act presents a triable issue of fact.” The Court is not persuaded by Plaintiffs’ arguments.

Civil Code section 1791 defines a buyer as follows:

““Buyer” or “retail buyer” means any individual who buys consumer goods from a person engaged in the business of manufacturing, distributing, or selling consumer goods at retail. As used in this subdivision, “person” means any individual, partnership, corporation, limited liability company, association, or other legal entity that engages in any of these businesses.” (Civ. Code, § 1791, subd. (b).)

In *Towns v. Hyundai Motor America* (2025) 117 Cal.App.5th 958, 969, *as modified on denial of reh’g* (Jan. 16, 2026), *review denied* (Apr. 22, 2026), the court touched upon whether an individual can be considered a buyer based on conduct such as making payments on the vehicles, being the primary driver of the vehicle, and obtaining the vehicle for that individuals use.

Here too, Plaintiff Linda Quezada argues she is the buyer because “she personally selected the Vehicle, negotiated the purchase, took delivery, was the primary driver, presented the Vehicle for every repair visit at Ken Grody Ford, and bore the consequences of the Vehicle’s defects.” The court in *Towns v. Hyundai Motor America* (2025) 117 Cal.App.5th 958 rejected this argument holding that “the language of the Act contains no references to a category of ‘de facto buyers.’” (*Id.*, 969.)

As discussed in *Towns*, the plain language defining a “buyer” under the Act is straightforward and, without case law establishing otherwise, the Court will interpret the plain language of the statute at face value: the buyer is the individual who buys the consumer good.

Here, Plaintiff did not buy the vehicle at issue. While Plaintiff Linda Quezada may have “negotiated the purchase, took delivery, was the primary driver, presented the Vehicle for every repair visit at Ken Grody Ford,” Plaintiff Linda Quezada did not buy the vehicle in her individual capacity and was not a buyer under the Song Beverly Act. Rather, Plaintiff Poo’s Playhouse, LLC is identified as the buyer on the Retail Installment Sale Contract. There are no co-buyers listed on the Sale Contract. The repair order history also reflects that the vehicle was presented for repair by Poo’s Playhouse LLC.

Given the above, the Court finds that **Plaintiff Linda Quezada does not have standing**. The Motion for Summary Judgment is **GRANTED** as to the claims brought by Plaintiff Linda Quezada.

As explained below, however, even if Plaintiff Linda Quezada had standing, Defendants would still be entitled to summary judgment on all causes of action alleged in the complaint.

B. CAUSES OF ACTION

1. First Cause of Action for violation of Civil Code Section 1793.2(d) against Defendant Ford

Plaintiffs’ first cause of action is for violation of Civil Code section 1793.2(d) and is only alleged against Defendant Ford.

Defendants argues that Plaintiffs cannot establish their first cause of action for violation of Civil Code section 1793.2(d) because they cannot bring claims against Defendant Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

Defendant cites to *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189 in support of the argument that Plaintiffs cannot establish their first cause of action for violation of Civil Code section 1793.2(d) because they cannot bring claims against Defendant Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle. The Court agrees.

The primary holding in *Rodriguez v. FCA US, LLC* (2024) 17 Cal.5th 189 is that “a motor vehicle purchased with an unexpired manufacturer’s new car warranty does not qualify as a ‘motor vehicle sold with a manufacturer’s new car warranty’ under section 1793.22, subdivision (e)(2) ’s definition of ‘new motor vehicle’ unless the new car warranty was issued with the sale.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 196 [underline added].) The court held that “the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ — considered in the context of the surrounding text of section 1793.22, subdivision (e)(2) and in the broader context of the Song-Beverly Act’s provisions distinguishing between new and used goods — means a vehicle for which a manufacturer’s new car warranty is issued with the sale.” (*Id.*, at 206 [emphasis added].)

Thus, to be considered a new motor vehicle under the Act, a “new car” warranty must have been “issued *with* the sale” of the vehicle. (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [emphasis in original] and 199-200 [“the phrase ‘other motor vehicle sold with a manufacturer’s new car warranty’ is most naturally understood to mean other vehicles for which such a warranty is issued with the sale. (§ 1793.22, subd. (e)(2).)”).

In issuing a “new car” warranty to a vehicle that is not technically new, “manufacturers (or their dealer-representatives) treat them as such upon sale by providing the same type of manufacturer’s warranty that accompany new cars.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [citing *Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 220, *aff’d* (2024) 17 Cal.5th 189].)

“For new products, liability extends to the manufacturer; for used products, liability extends to the distributor or retail seller and not to the manufacturer, at least where the manufacturer has not issued a new warranty or played a substantial role in the sale of a used good.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 202.) “In both cases, the Act’s protections are premised on an express warranty arising from the product’s sale.” (*Ibid.*)

Here, Defendant establishes and Plaintiffs agree that the vehicle at issue had 44,633 miles on its odometer at the time of purchase. The parties also agree that the distributor Defendant Ken Grody Ford sold the vehicle to Plaintiffs as a “certified pre-owned” vehicle.

The parties disagree, however, about whether the warranties that accompany Plaintiffs’ vehicle qualify the vehicle for recourse pursuant to the Song Beverly Act. Plaintiffs argue that “[o]n March 16, 2022, the same date the Sales Contract was signed, the Subject Vehicle was sold as a Ford Blue Advantage Gold certified used vehicle. Under the Ford Blue Advantage Gold certification, the Subject Vehicle received a new Comprehensive Limited Warranty of 12 months or 12,000 miles and a Powertrain Limited Warranty of 7 years or 100,000 miles, in addition to a 172-point vehicle inspection.”

Rodriguez expressly holds that a “new car” warranty must accompany the used vehicle at the time of the sale. Plaintiffs proffer no evidence that they were given “the same type of manufacturer’s

warranty that accompany new cars.” (*Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, 198 [citing *Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 220, *aff’d* (2024) 17 Cal.5th 189].)

As Defendant points out, other Courts have adopted this interpretation of the holding in *Rodriguez*. For example, in *Crescencio v. Ford Motor Company* (C.D. Cal. 2025) 811 F.Supp.3d 1132, the court rejected the argument that certified preowned warranties constitute “a new car warranty” such that a plaintiff may recovery under the Song Beverly Act based on the certified preowned warranties provided. (*Id.* at 1138 [citing *Dubrosky v. Am. Honda Motor Co.*, No. CV 24-09153-HDV (ASx), 2025 WL 2451031, at *9 (C.D. Cal. Aug. 13, 2025) (dismissing SBA claim because “Plaintiffs fail to adduce any authority indicating that a certified pre-owned warranty constitutes “a new car warranty” (emphasis in the original)); *In re Coordination Proceeding Special Title Rule 3.550 Ford Motor Warranty Cases*, 2025 WL 1422438, at *2–3, 2025 Cal. Super. LEXIS 9146, at *7 (May 14, 2025) (sustaining demurrer as to CPO warranty theory because “[t]o qualify as a “new motor vehicle,” the manufacturer must have issued, as part of the sale, the manufacturer’s new-car warranty, not a “new” warranty on a used car.”)]; see also *Huerta v. General Motors* (C.D. Cal., Mar. 16, 2026, No. CV 25-7535-MWF (RAOX)) 2026 WL 789952, at *2 [“Song-Beverly Act’s express warranty provisions do not apply to used vehicles.”].)

Plaintiffs have not established that they received a new car warranty for their certified preowned vehicle. Rather, the evidence Plaintiff submitted in opposition, particularly Exhibit H, establishes that the warranties granted under the Ford Blue Advantage are different than those granted to new vehicles.

In opposition, Plaintiffs cite to *Kiluk v. Mercedes-Benz USA LLC* (2019) 43 Cal.App.5th 334. In *Kiluk*, “Mercedes Benz partnered with a dealership to sell used vehicles directly to the public by offering an express warranty as part of the sales package, which is a crucial incentive for buyers like plaintiff. By partnering with the dealership, Mercedes Benz stepped into the role of a retailer and was subject to the obligations of a retailer under section 1795.5. That section provides that a retailer's obligations are the ‘same’ as a manufacturer under section 1793.2.” (*Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 340.)

Since *Kiluk*, however, California’s Supreme Court has found that used cars are not entitled to recovery under the Song-Beverly Act unless they are given “new car” warranties– not new warranties to a used car. Thus, under the facts of the current case, whether Ford took on the role of a retailer is irrelevant for this cause of action. The holding in *Kiluk*, therefore, does not impact this Court’s holding on the motion for summary judgment at hand.

Here, Defendant establishes that Plaintiffs did not receive a new car warranty at the time of purchase. As such, Plaintiffs’ vehicle is not a candidate for relief pursuant to this section of the Song Beverly Act.

Based on applicable law, including as set forth above, the Motion for Summary Adjudication is **GRANTED** as to the **first cause of action** for violation of Civil Code section 1793.2(d) because they cannot bring claims against Defendant Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

2. Second Cause of Action for violation of Civil Code section 1793.2(b) against Defendant Ford

Plaintiffs’ second cause of action is for violation of Civil Code section 1793.2(b) and is only alleged against Defendant Ford.

Defendants argue that Plaintiffs cannot establish their second cause of action for violation of Civil Code section 1793.2(b) because they cannot bring claims against Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

For the reasons discussed above and pursuant to applicable law, including *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Motion is **GRANTED** as to the **second cause of action** for violation of Civil Code section 1793.2(b).

3. Third Cause of Action for violation of Civil Code section 1793.2(a)(3) against Defendant Ford

Plaintiffs’ third cause of action is for violation of Civil Code section 1793.2(a)(3) is alleged against Defendant Ford.

Defendants argue that Plaintiffs cannot establish their third cause of action for violation of Civil Code section 1793.2(a)(3) because they cannot bring claims against Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

For the reasons discussed above and pursuant to applicable law, including *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Motion is **GRANTED** as to the **third cause of action**.

4. Fourth Cause of Action for Breach of the Implied Warranty of Merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5 against Defendant Ford

Plaintiffs’ fourth cause of action is for breach of implied warranty of merchantability pursuant to Civil Code section 1791.1, 1794, and 1795.5. is alleged against Defendant Ford.

Defendants argue that Plaintiffs cannot establish their fourth cause of action for breach of implied warranty of merchantability because they cannot bring claims against Ford (the manufacturer) under the Song Beverly Act based on the purchase of a “used” vehicle.

The court in *Ruiz Nunez v. FCA US LLC* expressly held that “[i]t is evident from these [Song Beverly Act] provisions that only distributors or sellers of used goods—not manufacturers of new goods—have implied warranty obligations in the sale of used goods.” (*Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399 [citing Civ. Code, § 1795.5].)

“As one court has put it, the Song-Beverly Act provides similar remedies (to those available when a manufacturer sells new consumer goods) ‘in the context of the sale of used goods, except that the manufacturer is generally off the hook.’ ” (*Ruiz Nunez v. FCA US LLC* (2021) 61 Cal.App.5th 385, 399 [citing *Kiluk v. Mercedes-Benz USA, LLC* (2019) 43 Cal.App.5th 334, 339 (Song-Beverly Act “generally binds only distributors and retail sellers in the sale of used goods”)]). “[T]he assumption baked into section 1795.5 is that the manufacturer and the distributor/retailer are distinct entities.” (*Ibid.*) An exception arises “[w]here the manufacturer sells directly to the public . . . [and] takes on the role of a retailer.’ ” (*Ibid.*)

Here, Plaintiffs did not buy the certified preowned vehicle from Ford, Ford did not sell the vehicle directly to Plaintiffs, and therefore Ford was not a party to the sale of the vehicle at issue. Rather, Plaintiffs purchased the vehicle from Ken Grody Ford. Case law expressly establishes that only distributors or sellers of used goods have implied warranty obligations in the sale of a used good.

Ford did not sell the vehicle to Plaintiff and therefore did not “take on the role of a retailer” in this transaction.

For the reasons discussed above and pursuant to *Rodriguez v. FCA US LLC* (2024) 17 Cal.5th 189, the Motion is **GRANTED** as to the **fourth cause of action** for breach of implied warranty of merchantability pursuant to Civil Code sections 1791.1, 1794, and 1795.5.

5. Fifth Cause of Action for Negligent Repair against Defendant Ken Grody

Plaintiffs’ fifth cause of action is for negligent repair only alleged against Defendant Ken Grody.

Defendants argue that Plaintiffs cannot establish their fifth cause of action for negligent repair against Ken Grody Ford because it is barred by the economic loss rule.

In *Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, the court held:

“[U]nder the economic loss rule, tort recovery for breach of a contract duty is generally barred . . . unless two conditions are satisfied. A plaintiff must first demonstrate the defendant’s injury-causing conduct violated a duty that is independent of the duties and rights assumed by the parties when they entered the contract. Second, the defendant’s conduct must have caused injury to persons or property that was not reasonably contemplated by the parties when the contract was formed.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 20-21; see also *Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 482-83; and *Seely v. White Motor Co.* (1965) 63 Cal.2d 9, 17-19.)

“To apply the economic loss rule, we must first determine what the product at issue is. Only then do we find out whether the injury is to the product itself (for which recovery is barred by the economic loss rule) or to property other than the defective product (for which plaintiffs may recover in tort).” (*Jimenez v. Superior Court* (2002) 29 Cal.4th 473, 483.)

Importantly, the economic loss rule “applies to bar tort recovery for negligently inflicted economic losses unaccompanied by physical or property damage under the limits recognized in *Sheen*.” (*Rattagan v. Uber Technologies, Inc.* (2024) 17 Cal.5th 1, 38.)

Here, Plaintiffs only allege that Defendant Ken Grody “breached its duty to Plaintiffs to use ordinary care and skill by failing to properly store, prepare and repair the Subject Vehicle in accordance with industry standards.” (Complaint, ¶ 59.) Plaintiffs allege that they presented their vehicle “to an authorized repair facility for a nonconformity.” (Complaint, ¶ 18.)

Plaintiffs do not allege any property damage to the vehicle that did not already exist at the time that the vehicle was presented to Defendant for repair. Accordingly, Plaintiffs do not allege that Defendant Ken Grody’s conduct in attempting to repair the vehicle *caused* the injury to the vehicle.

Rather the allegations and the evidence before the Court establish that Plaintiffs presented the allegedly defective vehicle to Defendant Ken Grody and Defendant Ken Grody was unable to repair the alleged defect (the defect that existed before the repair attempts and not because of the repair attempts). Nowhere does Plaintiff allege or establish that the repair attempts *caused* the injury to property.

As such, the economic loss rule applies to Plaintiff’s fifth cause of action for negligent repair. The Motion for Summary Judgment is **GRANTED** as to the **fifth cause of action** for negligent repair.

In sum, the Motion for Summary Judgment is **GRANTED in its entirety**.

Defendants to give notice.

1. Motion for Terminating Sanctions

Defendants Ford Motor Company and Ken Grody Ford (“Defendants”) move for “terminating sanctions against Plaintiffs Linda W Quezada and Poo’s Playhouse, LLC, for their continued failure to abide by the California rules of discovery and this Court’s Order. In the alternative, Ford requests that the Court impose issue sanctions and/or evidence sanction against Plaintiffs, prohibiting them from testifying at trial and offering any declaration in response to a motion for summary judgment. Ford also respectfully requests that the Court grant monetary sanctions in the amount of \$3,060.00 against Plaintiffs Linda W Quezada and Poo’s Playhouse, LLC, and their attorneys of record Strategic Legal Practices, APC jointly and severally to compensate Ford for the time and expense incurred in bringing this Motion.”

(The Court notes that the opposition is not accompanied by a proof of service. However, Defendants do not argue improper service and filed a Reply.)

Pursuant to Code of Civil Procedure section 2023.030, “the court, after notice to any affected party, person, or attorney, and after opportunity for hearing, may impose” certain “sanctions against anyone engaging in conduct that is a misuse of the discovery process.” Such misuses include but are not limited to “[f]ailing to respond or to submit to an authorized method of discovery” and “[d]isobeying a court order to provide discovery.” (Code Civ. Proc., § 2023.010(d) and (g).)

Under Code of Civil Procedure section 2023.030(a), the “court may impose a monetary sanction ordering that one engaging in the misuse of the discovery process, or any attorney advising that conduct, or both pay the reasonable expenses, including attorney’s fees, incurred by anyone as a result of that conduct.” (Code Civ. Proc., § 2023.030, subd. (a).)

Under Code of Civil Procedure section 2023.030(d)(1), the court may also “impose a terminating sanction by . . . [a]n order striking out the pleadings or parts of the pleadings of any party engaging in the misuse of the discovery process” or “[a]n order dismissing the action, or any part of the action, of that party.” (Code Civ. Proc., § 2023.030, subd. (d)(1) and (d)(3).)

A party’s repeated failure to “participate in the discovery process” and “failure to pay the monetary sanctions the superior court ordered” constitute grounds for terminating sanctions. (*Moofly Productions, LLC v. Favila* (2020) 46 Cal.App.5th 1, 12; *Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.* (2008) 163 Cal.App.4th 1093, 1106 [holding the party’s persistent “pattern of failure or refusal to give meaningful responses to discovery” constituted grounds for terminating sanction]; *Mileikowsky v. Tenet Healthsystem* (2005) 128 Cal.App.4th 262, 280, as modified on denial of reh’g (May 4, 2005) [“Here the record is replete with evidence of Dr. Mileikowsky’s failures to answer discovery requests despite numerous extensions sought and granted. Time and again, he refused to respond despite the issuance of court orders and monetary sanctions.”].)

Terminating sanctions are inappropriate if the “imposition of a lesser sanction will serve to protect the legitimate interests of the party harmed by the failure to provide discovery.” (*Thomas v. Luong* (1986) 187 Cal.App.3d 76, 81.) Even so, “where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the

		discovery rules, the trial court is justified in imposing the ultimate sanction.” (<i>Moofly Productions, LLC v. Favila</i> (2020) 46 Cal.App.5th 1, 12.) Under such circumstances, the trial court has “broad authority to levy the ultimate sanction when prior efforts yielded no results.” (<i>Liberty Mutual Fire Ins. Co. v. LcL Administrators, Inc.</i> (2008) 163 Cal.App.4th 1093, 1105.) Here, the Court declines to issue terminating, issue or evidentiary sanctions. The Court will, however, issue monetary sanctions for Plaintiffs’ failure to timely cooperate in the discovery process and abide by the Court’s previous court orders regarding the same as well as the cost of bringing the motion and fees incurred for Plaintiffs’ nonappearances at the scheduled depositions. The request for monetary sanctions is GRANTED against Plaintiffs and Plaintiffs’ counsel, jointly and severally, in the amount of \$3,060.00. Defendants to give notice.
3.	30-2023-01361390 Norris vs. Chavez-Nambo	1. Motion for Terminating Sanctions Defendant Diana Angelica Chavez-Nambo (“Defendant”) moves for an order imposing terminating sanctions against plaintiff Diona Shunte Norris (“Plaintiff”) and dismissing this action with prejudice. The Court may impose a monetary, issue, evidence, or terminating sanction against any party engaging in misuse of the discovery process. (Code Civ. Proc., § 2023.030.) “The discovery statutes evince an incremental approach to discovery sanctions, starting with monetary sanctions and ending with the ultimate sanction of termination. ‘Discovery sanctions “should be appropriate to the dereliction, and should not exceed that which is required to protect the interests of the party entitled to but denied discovery.”’ [Citation.] If a lesser sanction fails to curb misuse, a greater sanction is warranted: continuing misuses of the discovery process warrant incrementally harsher sanctions until the sanction is reached that will curb the abuse. ‘A decision to order terminating sanctions should not be made lightly. But where a violation is willful, preceded by a history of abuse, and the evidence shows that less severe sanctions would not produce compliance with the discovery rules, the trial court is justified in imposing the ultimate sanction.’ [Citation.]” (<i>Doppes v. Bentley Motors, Inc.</i> (2009) 174 Cal.App.4th 967, 992.) On October 30, 2025, the Court granted Defendant’s motion to compel Plaintiff’s responses to Special Interrogatories, ordering Plaintiff to provide responses within 30 days and pay \$500.00 in sanctions within 30 days as well. On January 15, 2026, the Court granted Defendant’s motion to compel responses to Request for Production of Documents and ordered Plaintiff to pay an additional \$500.00 in sanctions. Defendant’s motion to compel responses to Form Interrogatories was granted on January 22, 2026 with an additional \$350.00 in sanctions imposed. To date, Plaintiff has not served responses or paid the sanctions. The hearing on this Motion was continued from August 20, 2026 to September 24, 2026 and Plaintiff was ordered to appear on September 24 and expressly advised that the failure to appear may result in dismissal without further notice. Plaintiff has disobeyed the Court’s orders without substantial justification. Under these circumstances, the Court finds the ultimate sanction of termination to be warranted. Thus, Defendant’s unopposed Motion for Terminating Sanctions is GRANTED. Moving party to give notice.

5.	30-2025-01503259 Mehling vs. Meech	1. Case Management Conference 2. Demurrer to Complaint 3. Motion to Strike Portions of Complaint Defendants Randall K. Meech and Karen M. Meech demur to the fifth cause of action of Plaintiffs' First Amended Complaint.(ROA 28) Defendants also seek to strike put punitive damages language from the FAC. (ROA 30) 1. <u>DEMURRER</u> Based on applicable law, the subject Demurrer is SUSTAINED with <u>20 days leave to amend.</u> ‘[W]aste is conduct (included in this word both acts of commission and of omission) on the part of the person in possession of land which is actionable at the behest of, and for the protection of the reasonable expectations of, another owner of the same interest in land ... Thus, waste is, functionally, a part of the law which keeps in balance the conflicting desires of persons having interests in the same land.’ (5 Powell on Real Property (1974) § 636, pp. 5–6.)” (<i>Cornelison v. Kornbluth</i> (1975) 15 Cal.3d 590, 597–598....) Waste evolved and broadened from a cause of action designed to protect owners of succeeding estates against the improper conduct of the person in possession which harmed and affected the inheritance, to a legal means by which any concurrent non-possessory holders of interest in the land are enabled to prevent or restrain harm to the land committed by persons in possession. (<i>Id.</i>, at p. 598.) “ ‘To constitute waste, there must be an injury to the inheritance (Civ.Code, § 818), ...’ ”⁶ (<i>Hardie v. Chew Fish Yuen</i> (1968) 258 Cal.App.2d 301, 304.) “Injury to the inheritance, which under the common law would be termed ‘waste’ can only be proved, with the possible exception of a few instances, by evidence of acts which injuriously affect the market value of the property.” (<i>Eastman v. Peterson</i> (1968) 268 Cal.App.2d 169, 175; <i>Sallee v. Daneri</i> (1942) 49 Cal.App.2d 324, 327.) Proof of “conduct which has resulted in substantial depreciation of the market value of land” establishes waste. (<i>Ibid.</i>) [<i>Smith v. Cap Concrete, Inc.</i> (1982) 133 Cal.App.3d 769, 775–776. Internal citations omitted.] The defendant must be “ ‘under a duty to preserve and protect the property involved.’ ” (<i>Id.</i> at p. 1212, 122 Cal.Rptr.3d 417; see <i>Hickman v. Mulder</i> (1976) 58 Cal.App.3d 900, 908, [willful mismanagement and neglect to do acts necessary to preserve property amount to bad faith waste].) [<i>Schellinger Brothers v. Cotter</i> (2016) 2 Cal.App.5th 984, 1000.] Here, Plaintiff has pled no facts that the parties have an interest in the same land, or that Defendants were under a duty to protect Plaintiff’s land. While Plaintiff makes the argument that the case involves common areas, which are owned by both, Plaintiff does not allege damage to the common area, but rather, to Plaintiff’s property. 2. <u>MOTION TO STRIKE</u> As to the Motion to Strike, two causes of action seek punitive damages: the 5th for Waste, and the 7th for Gross Negligence/Willful Misconduct.
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		As to the 5th cause of action, the motion is moot. As to the 7th cause of action, while it is clear that there were two incidents of water intrusion 4 months apart, there is no detail as to when Defendants were put on notice or that they were concealing the extent of damage under their control. More facts are needed to allege punitive damage conduct. To the extent the Motion to Strike is not deemed moot by the ruling on the demurrer, it is GRANTED with 20 days leave to amend. Defendants to give notice.
6.	30-2025-01471307 Velasquez vs. John Doe, Trustee of the Ebnajos Trust	1. Case Management Conference 2. Motion to Quash Service of Summons Defendant Abraham Nasiri Mourshaki move this Court for an order quashing the purported service of summons and complaint. Based on applicable law, said Motion to Quash is DENIED. First, it appears Defendant has made a general appearance herein thereby waiving any defect in service. A general appearance need not be a formal, technical step or act. “What is determinative is whether defendant takes a part in the particular action which in some manner recognizes the authority of the court to proceed.” (<i>Sanchez v. Superior Court</i> (1988) 203 Cal.App.3d 1391, 1397, 250 Cal.Rptr. 787.) “The appearance will be considered ‘general’ in nature if the defendant acts in a manner, ‘showing of a “purpose of obtaining any ruling or order of the court going to the merits of the case”.’ ” [<i>Nam Tai Electronics, Inc. v. Titzer</i> (2001) 93 Cal.App.4th 1301, 1307 [113 Cal.Rptr.2d 769, 772] <u>disapproved of by Pavlovich v. Superior Court</u> (2002) 29 Cal.4th 262.] Here, arguably appearing at <i>two</i> CMCs, submitting <i>two</i> CMC statements indicating an intent to file a demurrer and MSJ, seeking <i>and obtaining</i> a fee waiver (with the Court serving notice of the order), and informing the Court that no FAC had been served; and thus prompting the Court to order POS to be filed, is sufficient to establish a recognition of the Court’s authority to proceed herein. Second, the motion is untimely. The motion to quash must be made at defendant's initial appearance in the action, on or before the last day to plead “or within any further time that the court may for good cause allow.” [CCP § 418.10(a); see <i>Marriage of Obrecht</i> (2016) 245 CA4th 1, 16-17, 199 CR3d 438, 451-452.] Here, the POS (<i>not provided by Defendant</i>, but in ELF as ROA 10) indicates Defendant was served via substitute service on 4/30/2025 at 23 SILKTASSEL #140. RANCHO SANTA MARGARITA. CA., 92688. By 9/4/2025 he was in Court stating that he had not been served because service was at his son’s residence. Yet, this motion was not filed until almost a year later on 4/9/2026. As such, it is untimely. There is no good cause for allowing a Motion to be heard almost 1 ½ after service when Defendant has knowledge of (allegedly defective) service. Third, Defendant’s attack on service is also somewhat unsupported. He does not identify the date, address, recipient, or mailing associated with the substituted service he challenges, does not attach the proof of service, and offers no declaration from the son at whose home he says the papers were left. So, the Court is left to speculate that the POS at issue is ROA 10, but it is unclear. HOWEVER, the Court notes a First Amended Complaint (“FAC”) was filed on 10/27/2025. (ROA 24.) Thereafter, on 1/15/2026 the Court directed Counsel for plaintiff (s) to file the proof of service

		with the Court forthwith. On 4/24/2026 Plaintiff filed a “proof of non-service”. To date, no Proof of Service has been filed herein to indicate the FAC has been served <i>on anyone</i>. An amendment or amended complaint must be served on “the defendants affected thereby.” [CCP § 471.5] Pursuant to CRC Rule 3.110(b), “The complaint must be served on all named defendants and proofs of service on those defendants must be filed with the court within 60 days after the filing of the complaint. When the complaint is amended to add a defendant, the added defendant must be served and proof of service must be filed within 30 days after the filing of the amended complaint.” Notably, “If a party fails to serve and file pleadings as required under this rule, and has not obtained an order extending time to serve its pleadings, the court may issue an order to show cause why sanctions shall not be imposed.” [CRC 3.110(f).] As such, the Court sets an OSC re: why sanctions shall not be imposed for failure to timely serve First Amended Complaint for October 8, 2026 at 10:30 am. Today’s Case management conference is continued to the same date/time. Finally, Defendant also makes a motion to dismiss under CCP§583.210 and 583.410. If service is not completed within <i>three years</i>, dismissal is <i>mandatory</i>. [CCP §§ 583.210, 583.250.] Also, Pursuant to CCP§583.410(a), “The court may in its discretion dismiss an action for delay in prosecution pursuant to this article on its own motion or on motion of the defendant if to do so appears to the court appropriate under the circumstances of the case.” However, this request is denied, without prejudice, as premature. Clerk to give notice.
7.	30-2026-01541292 Alikhanian vs. Cruise	1. Case Management Conference 2. Motion to Quash Discovery Subpoena Plaintiff, Lusine Alikhanian, moves for an order quashing, or narrowing, the deposition subpoenas for business records served by Defendant Joseph T. Cruise, M.D. on Keck Medicine of USC, Keck Medicine-USC Care Physician Billing, Keck Medicine of USC-Xrays, and CVS Pharmacy, Inc. The Motion to Quash is GRANTED, in part, Denied in part. Specifically, Plaintiff contends that the four deposition subpoenas should quashed, as drafted, because they are too broad and are not limited in time or scope. In the alternative, Plaintiff requests that the deposition subpoenas be limited to records that are reasonably related to the claims at issue and within a reasonable time period. Defendants, Joseph T. Cruise, M.D. and Cruise Plastic Surgery (collectively, “Defendants”) oppose the motion. Defendants contend that the motion should be denied, or that if the Court determines any limitation is warranted, the deposition subpoenas should be reasonably limited through subject-matter and temporal limitations tied to issues Plaintiff has placed in controversy rather than quashed in their entirety. At issue are four deposition subpoenas for business records served by Defendant Joseph T. Cruise, M.D. (“Dr. Cruise”) on Keck Medicine of USC, Keck Medicine-USC Care Physician Billing, Keck Medicine of USC-Xrays, and CVS Pharmacy, Inc. (collectively, the “deposition subpoenas”).

Defendant Dr. Cruise first contends that Plaintiff's motion is untimely under Code of Civil Procedure section 1985.3(g) because it was not filed until after the April 16, 2026 production date. Although the instant motion was filed after the date set for production, the Court may rule on the motion. The court can grant a motion to quash served even after the date set for production. "Nothing in the procedure set forth above [Section 1985.3 of the Code of Civil Procedure] suggests that a court lacks jurisdiction to consider a motion to quash if it is brought after the date set forth in the subpoena for production. The time limits mentioned in the procedure for bringing the motion are obviously designed to guide those involved as to when the witness with the records may safely honor or not honor the subpoena when a consumer objects." (*Slagle v. Superior Court* (1989) 211 Cal.App.3d 1309, 1312.)

As to the merits, Code of Civil Procedure section 1987.1 provides, in pertinent part: "[T]he court, upon motion reasonably made by [a party, witness, consumer, or employee] ... may make an order quashing the subpoena entirely, modifying it, or directing compliance with it upon those terms or conditions as the court shall declare, including protective orders. In addition, the court may make any other order as may be appropriate to protect the person from unreasonable or oppressive demands, including unreasonable violations of the right of privacy of the person." (Code Civ. Proc. § 1987.1, subds. (a)-(b).)

Code of Civil Procedure section 1985.3 provides, in pertinent part: "Any consumer whose personal records are sought by a subpoena duces tecum and who is a party to the civil action in which this subpoena duces tecum is served may, prior to the date for production, bring a motion under Section 1987.1 to quash or modify the subpoena duces tecum. Notice of the bringing of that motion shall be given to the witness and deposition officer at least five days prior to production. The failure to provide notice to the deposition officer shall not invalidate the motion to quash or modify the subpoena duces tecum but may be raised by the deposition officer as an affirmative defense in any action for liability for improper release of records." (Code Civ. Proc. § 1985.3(g).)

The California Constitution expressly grants Californians a right of privacy and the protection of informational privacy is the provision's central concern. (*Williams v. Superior Court* (2017) 3 Cal.5th 531, 552.) "[W]hen a discovery request seeks information implicating the constitutional right of privacy, to order discovery simply upon a showing that the Code of Civil Procedure section 2017.010 test for relevance has been met is an abuse of discretion. [Citation.]" (*Id.* at p. 556.) In evaluating potential invasions of privacy, "[t]he party asserting a privacy right must establish a legally protected privacy interest, an objectively reasonable expectation of privacy in the given circumstances, and a threatened intrusion that is serious. [Citation.]" (*Id.* at p. 552.) "The party seeking information may raise in response whatever legitimate and important countervailing interests disclosure serves, while the party seeking protection may identify feasible alternatives that serve the same interests or protective measures that would diminish the loss of privacy. A court must then balance these competing considerations. [Citation.]" (*Ibid.*) This test has been applied to circumstances involving competing claims for access to third party contact information. (*Ibid.*) A compelling interest or compelling need is not required all cases, although it "is still required to justify 'an obvious invasion of an interest fundamental to personal autonomy.' [Citation.]" (*Id.* at p. 556.)

There is a constitutional right to privacy in one's medical records. (*Vinson v. Superior Court* (1987) 43 Cal.3d 833, 841) [medical records] ("*Vinson*"); *Davis v. Superior Court* (1992) 7 Cal.App.4th 1008, 1014 [medical records] ("*Davis*"); *Cutter v. Brownbridge* (1986) 183 Cal.App.3d 836, 842, overruled on other grounds in *Jacob B. v. County of Shasta* (2007) 40 Cal.4th 948 [the right to control circulation of personal information is fundamental and there is a constitutional right to privacy under Article 1, Section 1 of the California Constitution to one's medical history].) Thus, disclosure may be ordered only when the information is directly relevant and essential to the fair resolution of

the lawsuit, and where the need for disclosure outweighs privacy concerns. “The scope of any disclosure must be narrowly circumscribed, drawn with narrow specificity, and must proceed by the least intrusive manner. [Citation.]” (*Davis, supra*, 7 Cal.App.4th at p. 1014.) The party seeking disclosure of the constitutionally protected information bears the burden of establishing direct relevance. (*Id.* at p. 1017.)

A defendant is entitled to records concerning the body parts and conditions at issue in the case. (See *Vinson, supra*, 43 Cal.3d at p. 842 [where plaintiff sues for personal injuries, the physician-patient and psychotherapist-patient privileges are waived for conditions “tendered” in the action or related to the issue of proximate causation].) A defendant is not entitled to review such records on the mere hope that it may disclose some condition bearing on plaintiff’s claims. (*Davis, supra*, 7 Cal.App.4th at p. 1017.) A defendant must show through evidence how the particular records sought are directly relevant and necessary; speculating that the records may reveal a contributing preexisting condition does not suffice. (*Ibid.*)

On their face, the four requests in the subject four deposition subpoenas **are overbroad in time and scope and seek Plaintiff’s entire medical history with Keck Medicine and CVS Pharmacy. In turn, as written, they intrude upon Plaintiff’s right to privacy** in Plaintiff’s medical history and records.

However, both parties make alternative requests, and the Court may modify the requests in the deposition subpoenas.

Defendants argue that the deposition subpoenas seek discovery relevant to claims and defenses Plaintiff has placed directly at issue, including post-surgical course, causation, damages, life expectancy, future damages, and lack of informed consent. Each category will be discussed in turn.

There is no dispute that discovery of Plaintiff’s medical and pharmacy records implicates Plaintiff’s privacy interests, and that medical conditions that are tendered by this action are discoverable. This action arises from an elective cosmetic upper blepharoplasty and temple lift performed by Defendant Dr. Cruise on September 19, 2024. (First Amended Complaint (“FAC”), ¶ 11.) Based on the allegations of the operative FAC, Plaintiff has tendered medical care relating to the September 19, 2024, cosmetic procedure performed by Dr. Cruise, and subsequent medical care and conditions relating to Plaintiff’s eyes and eyelids, to the present. (FAC, ¶¶ 12-33.) Thus, medical records from Keck Medicine and pharmacy/prescription records from CVS Pharmacy relating to the September 19, 2024, cosmetic procedure performed by Dr. Cruise, and subsequent medical care and conditions relating to Plaintiff’s eyes and eyelids, to the present, are discoverable.

As to causation, damages, life expectancy, and future damages, Defendants’ arguments of possible other conditions, treatment, medications, imaging findings, ophthalmologic issues, or unrelated medical factors which may have contributed to or caused the complaints Plaintiff attributes to Dr. Cruise, as well as possible other medical history, chronic conditions, serious illnesses, medication history, or other health factors unrelated to Dr. Cruise that may affect life expectancy are speculative. Defendants fail to present any evidence showing other causes of Plaintiff’s alleged injuries/damages and other medical conditions or health factors unrelated to Dr. Cruise that may affect life expectancy. Disclosure of all of Plaintiff’s medical records at Keck Medicine and pharmacy records at CVS Pharmacy intrudes upon Plaintiff’s medical privacy and is not narrowly tailored, not drawn with narrow specificity, and is not the least intrusive manner to obtain the information sought. As such, on balance, Plaintiff’s right to privacy of her medical records outweighs Defendants’ need for discovery.

		Lastly, for lack of informed consent, Defendants seek records of prior surgical consent, informed-consent, and risk-disclosure which may show what risks Plaintiff was informed of, what risks she accepted, whether she had prior experience with comparable procedures or complications, and whether she previously consented to elective procedures despite disclosed risks. Defendants show that such records would be directly relevant to a defense to Plaintiff’s claim for lack of informed consent. However, such records are limited as follows: Plaintiff’s medical records, billing records, and x-rays from Keck Medicine relating to prior elective surgical procedures for the time period of January 1, 2019, to the present. Based on the foregoing, the motion to quash is GRANTED as to all medical, billing, and x-ray records from Keck Medicine and pharmacy/prescription records from CVS Pharmacy for Plaintiff <i>except</i> as the following: • Medical, billing, and x-ray records relating to the September 19, 2024, cosmetic procedure performed by Dr. Cruise, and subsequent medical care and conditions relating to Plaintiff’s eyes, eyelids, and orbit from September 2024, to the present; • Pharmacy and prescription records from CVS Pharmacy related to medical care and conditions relating to Plaintiff’s eyes, eyelids, and orbit from September 2024, to the present; and • Plaintiff’s medical records, billing records, and x-rays from Keck Medicine relating to prior elective surgical procedures only for the time period of January 1, 2021, to the present. Plaintiff’s request for a monetary sanction is DENIED. Plaintiff to give notice.
8.	30-2025-01535433 BCAL Construction Inc vs. LA Clinique Moliere Birthplace and Woman’s Wellness, Inc	1. Case Management Conference 2. Motion to Deem Facts Admitted 3. Status Conference re: ADR Plaintiff BCal Construction Inc. (“Plaintiff”) moves for an order (1) deeming the truth of all matters specified in Plaintiff’s first set of Requests for Admission as admitted; and (2) imposing monetary sanctions on Defendant La Clinique Moliere Birthplace and Women’s Wellness, Inc. (“Defendant”). Code of Civil Procedure section 2033.280(b) provides that, when a party fails to serve a timely response to requests for admission, “[t]he requesting party may move for an order that the genuineness of any documents and the truth of any matters specified in the requests be deemed admitted, as well as for a monetary sanction under Chapter 7 (commencing with Section 2033.010).” Subdivision (c) provides that the Court shall make this order, “unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220.” Here, Defendant served substantially compliant responses prior to the hearing. (Ferguson Decl., ¶ 5, Exh. A.) The motion is therefore MOOT as to deeming matters admitted.

		As to sanctions, CCP §2033.280(c) provides that “It is mandatory that the court impose a monetary sanction under Chapter 7 (commencing with Section 2023.010) on the party or attorney, or both, whose failure to serve a timely response to requests for admission necessitated this motion.” Accordingly, the Court GRANTS Plaintiff monetary sanctions against Defendant La Clinique Moliere Birthplace and Women’s Wellness, Inc. in the reduced amount of \$285 (1.5 hrs at \$150/hr + \$60 filing fee). Sanctions are due and payable to Plaintiff’s counsel <u>within 30 days</u> of notice of this order. Plaintiff to give notice.
9.	30-2024-01412477 Sanchez vs. Mehdi	1. Motion to Compel Deposition (Oral or Written) Plaintiff, Jessica Marlene Sanchez Monterroso, moves for an order: (1) compelling Defendant Derma Noor, Inc. d/b/a Derma Noor Medical Spa (“Derma Noor”) to designate one or more properly prepared Persons Most Knowledgeable to provide complete testimony on all 30 categories identified in the Second Amended Notice of Taking Deposition of Derma Noor’s Person Most Knowledgeable (“PMK”) (the “Second Amended Notice”) and to appear for a continued deposition within 14 days of the Court’s order; (2) compelling Derma Noor to produce all documents requested in the 38 categories identified in the Second Amended Notice at least three (3) calendar days prior to the continued deposition date; (3) awarding monetary sanctions against Derma Noor, and/or its counsel of record, in favor of Plaintiff in the amount of \$3,500 to compensate Plaintiff for expenses and attorney’s fees in bringing this motion; and (4) awarding monetary sanctions against Derma Noor, and/or its counsel of record, in favor of Plaintiff in the amount of \$2,961.90 to compensate Plaintiff for reasonable expenses associated with the PMK deposition that occurred on December 4, 2025. The Motion is DENIED. Initially, no proof of service of the instant motion to compel appears in the Court’s file. More importantly, the motion is untimely. Code of Civil Procedure section 2025.480(a) provides: “If a deponent fails to answer any question or to produce any document, electronically stored information, or tangible thing under the deponent’s control that is specified in the deposition notice or a deposition subpoena, the party seeking discovery may move the court for an order compelling that answer or production.” Code of Civil Procedure section 2025.480(b) states, in relevant part: “[t]his motion [motion to compel answers or produce documents at a deposition] shall be made no later than 60 days after the completion of the record of the deposition” The 60-day deadline is mandatory. (<i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316, 321.) In footnote 3, the Court of Appeal additionally stated, “[p]rejudice is not required; discovery deadlines are mandatory and we have treated them as jurisdictional. (<i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410, 68 Cal.Rptr.2d 708), even though a trial court may grant relief from deadlines to file motions to compel. Where a party does not obtain trial court relief from the statutory deadline, ‘failure to move for further answers within the statutory time forecloses further relief’ (<i>O’Brien v. Superior Court</i> (1965) 233 Cal.App.2d 388, 391.)” (<i>Id.</i> at p. 322, fn. 3.) Footnote 3 cites to <i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, which explained that the deadline is jurisdictional insofar as it renders the court without authority to rule on motions to compel other than to deny them. (<i>Sexton v. Superior Court</i> (1997) 58 Cal.App.4th 1403, 1410.)

		According to The Rutter Guide, “[i]t is unclear whether the deposition record is ‘completed’ when the reporter sends <i>notice</i> that the transcript is available for review . . . or only after the expiration of time to sign or correct the transcript The safer course is to use the date of the reporter’s notice.” (Weil & Brown, Cal. Prac. Guide: Civ. Proc. Before Trial (The Rutter Group June 2026 Update) § 8:801.) Upon completing the transcript, the reporter notifies the deponent and other parties attending the deposition that the original transcript is ready for review and signature by the deponent. (Code Civil Procedure § 2025.520(a).) Here, the PMK deposition of Derma Noor was conducted on December 4, 2025. (Declaration of Charles G. Hemming III (“Hemming Decl.”), ¶ 6, Ex. B.) Plaintiff does not provide evidence as to the date of the reporter’s notice. However, Plaintiff’s counsel attaches excerpts of the deposition transcript along with the Certification of the Certified Shorthand Reporter, which is dated December 18, 2025. (Ex. B to Hemming Decl.) Assuming the date of the reporter’s notice is the same date the Certification was signed, i.e., December 18, 2025, the motion is untimely. 60 days from December 18, 2025, is February 16, 2026 (court holiday). Although the separate statement in support of the instant motion was filed on February 13, 2026, the instant motion was not filed until February 24, 2026, after 60 days from December 18, 2025. The notice of motion and all supporting papers must be filed within the mandatory 60-day period. (<i>Weinstein v. Blumberg</i> (2018) 25 Cal.App.5th 316, 319-321 [finding motion to compel further responses to deposition notice untimely where the papers supporting the motion were not filed and served until after the 60-day deadline to file the motion to compel even though the notice of motion and motion was timely served within the 60-day deadline].) Plaintiff fails to address and show that the instant motion is timely brought, and does not request relief from the 60-day statutory deadline. Based on the foregoing, since the 60-day deadline is mandatory and discovery deadlines have been treated as jurisdictional, the Court is without authority to rule on the motion to compel other than to DENY it. Plaintiff to give notice.
11.	30-2025-01518357 Carter vs. Built to Perfection, Inc	1. Motion to Compel Production Plaintiff Judith A. Carter (“Plaintiff”) moves to compel defendant Built to Perfection, Inc. (“Defendant”) to serve further responses to Plaintiff’s Requests for Production, Set One, Set One, Nos. 1-25. Plaintiff’s initial meet and confer correspondence referenced only Nos. 12, 15, and 16. (Exhibit 4 at p. 9.) In response, Defendant’s counsel asked Plaintiff’s counsel to please advise whether he wished to have supplemental responses indicating a reasonable search was made for documents. (Exhibit 5 at pp. 18-20.) Defendant agreed to supplement Nos. 12, 15, and 16 to include language that “a diligent search and a reasonable inquiry has been made in an effort to comply” with the demands but ultimately failed to provide the agreed-upon supplemental responses. (Exhibit 7 at p. 3; Exhibit 9 at p. 2.) Plaintiff did not raise issue with any other requests until an email sent on June 9, 2026, when Plaintiff asserted that responses to Nos. 2-11, 13-14, and 17-20 were deficient. (Exhibit 9 at p. 2.) Plaintiff demanded amended responses no later than June 11, 2026. (Exhibit 9 at p. 4.) Defendant’s counsel

		responded on June 11 to advise that he did not intend to serve supplemental responses pursuant to Plaintiff's unilateral deadline. (Exhibit 9 at p. 1.) The Court finds that, outside of Nos. 12, 15, and 16, Plaintiff did not adequately meet and confer regarding the dispute requests. Raising any issues with regard to the responses only two days before Plaintiff's unilateral deadline for supplemental responses does not constitute a good faith attempt to reach an informal resolution. Plaintiff argues that any further meet and confer would have been futile and Defendant's refusal to meaningfully engage in the meet and confer process is well documented. But there is no evidence that Defendant refused to meaningfully engage in the meet and confer process. Rather, Defendant simply refused to comply with Plaintiff's two-day deadline to serve supplemental responses, a deadline that was unreasonable in light of the numerous issues raised in Plaintiff's meet and confer correspondence. Because Plaintiff did not adequately meet and confer with regard to Nos. 1-11, 13-14, and 17-25, the Motion as to those requests is DENIED. As to Nos. 12, 15, and 16, Defendant's response that it is not in possession, custody, or control of any responsive documents is not accompanied by the required affirmation that "a diligent search and a reasonable inquiry has been made in an effort to comply with [these] demand[s]." (Code Civ. Proc., § 2031.230.) Thus, further responses are warranted. The Motion as to Nos. 12, 15, and 16 is therefore GRANTED. Further responses to be <u>served within 15 days</u>. Given that the Motion is in large part denied, Plaintiff's request for monetary sanctions is also DENIED. Moving party to give notice.
12.	30-2023-01329362 Re/Pro Realty vs. Avarca	1. Motion to Compel Deposition (Oral or Written) Plaintiff Re/Pro Realty's motion to compel the deposition of third-party Claudia Romo is DENIED. On August 6, 2026, this Court continued the initial hearing on this matter to allow Plaintiff time to file a proof of service of the moving papers, as well as to allow opposition and reply briefing. The Clerk served the Court's Minute Order continuing the hearing on Plaintiff and Plaintiff was ordered to serve notice of the continued hearing on all other parties. (ROA 189.) Plaintiff has not filed a proof of service demonstrating that notice of the continued hearing date was given as required. Thus, in addition to Plaintiff's failure to comply with this Court's order, the proposed deponent (nonparty Claudia Romo) does not appear to have been notified of the continued hearing date for this motion and no responsive pleading was filed. Further, while Plaintiff filed a proof of service indicating that the proposed deponent was personally served with the moving papers, there is no indication that any of the parties to the case were served with the underlying papers, as required by the Code of Civil Procedure. Clerk to give notice.

14.	30-2023-01351883 Mayorga vs. The Grand Theatre, Inc	1. Motion to Deem Facts Admitted Plaintiff Yanel Mayorga (“Plaintiff”) moves to deem Requests for Admission, Set One admitted against Defendant Musa Madain on the grounds that he failed to serve any responses. Plaintiff also seeks \$1,860 in monetary sanctions. Defendant The Grand Theater, Inc. and Musa Madain (“Defendants”) oppose the motion, arguing that verified responses without objections were provided on 06/01/2026 (which is the same day that this motion was filed). Code of Civil Procedure section 2033.280 provides that if a party to whom requests for admission are directed fails to serve a timely response, the party waives any objection to the requests. (Code Civ. Proc., § 2033.280.) The requesting party may also move for an order that the genuineness of documents and the truth of any matters specified in the requests be deemed admitted. (Code Civ. Proc., § 2033.280. subds. (a)-(b).) The court shall deem the matters admitted unless it finds that the party to whom the requests for admission have been directed has served, before the hearing on the motion, a proposed response to the requests for admission that is in substantial compliance with Section 2033.220. (Code Civ. Proc., § 2033.280, subd. (c).) Monetary sanctions are mandatory against the party or attorney who necessitated the motion unless the court finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust. (<i>Ibid.</i>) Here, the motion to deem matters admitted is DENIED AS MOOT because Defendant provided verified responses without objections on 06/01/2026. Still, Defendant’s failure to timely respond to the requests for admissions necessitated the motion and therefore the Court GRANTS monetary sanctions in the reduced amount of \$660 to be paid within 30 days of this order. Defendants to give notice.
15.	30-2026-01544617 DeBouck vs. Bays Apartment Newport, LLC	1. Case Management Conference 2. Motion to Compel Arbitration Defendants, Bays Apartment Newport LLC and Irvine Management Company (collectively, “Defendants”) move for an order compelling this matter to binding arbitration and staying this action until the completion of arbitration. Defendants contend that a valid agreement to arbitrate exists between Defendants and Plaintiff Heather DeBouck, who executed the lease agreement and arbitration addendum; that Plaintiff Melanie DeBouck is a third-party beneficiary of the lease agreement and is equitably estopped from refusing arbitration; that the arbitration agreement is subject to the Federal Arbitration Act (“FAA”) which preempts state law, including Civil Code section 1953; and that there is a delegation clause which leaves the question of scope and applicability of the arbitration agreement to the arbitrator. Plaintiffs Heather DeBouck and Melanie DeBouck (“Plaintiffs”) do not dispute that they executed residential lease agreements with Defendants, but argue that even assuming the FAA governs, the

motion should be denied because the arbitration agreement is unconscionable, as is the delegation clause. Plaintiffs also argue that they do not rely on Civil Code section 1953 to evade the FAA if the FAA governs, but that if the FAA does not govern, Civil Code section 1953 provides additional state law grounds.

Applicability of the FAA

The party asserting the Federal Arbitration Act (“FAA”) bears the burden to show it applies by presenting evidence establishing the contract with the arbitration provision has a substantial relationship to interstate commerce, and the failure to do so renders the FAA inapplicable. (*Carbajal v. CWPSC, Inc.* (2016) 245 Cal.App.4th 227, 234.) “[T]he United States Supreme Court has identified ‘three categories of activity that Congress may regulate under the commerce power: (1) the channels of interstate commerce, (2) the instrumentalities of interstate commerce and persons or things in interstate commerce, and (3) those activities having a substantial relation to interstate commerce.’ [Citations.]” (*Ibid.*)

Parties to an arbitration agreement may expressly designate that any arbitration proceeding should move forward under the FAA’s procedural provisions rather than under state procedural law. (*Cronus Investments, Inc. v. Concierge Services* (2005) 35 Cal.4th 376, 394.) By stating that “enforcement of this agreement to arbitrate shall be governed by the Federal Arbitration Act” in the arbitration provision, “the parties intended to incorporate the FAA with respect to compelling arbitration.” (*Victrola 89, LLC v. Jaman Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.) Thus, even if a transaction does not involve interstate commerce, “the parties may [] voluntarily elect to have the FAA govern enforcement of the [a]greement.” (*Id.* at 355 [“the presence of interstate commerce is not the only manner under which the FAA may apply.”]; see also *Barrera v. Apple American Group LLC* (2023) 95 Cal.App.5th 63, 76 [“since arbitration is a matter of contract, the FAA also applies if it is so stated in the agreement.”].)

Where a “contract specifies that claims shall be arbitrated ‘pursuant to the FAA’ . . . there is no ambiguity regarding the parties’ intent,” they adopted the FAA to govern their arbitration and the FAA controls, including section 3 which requires the court to stay the judicial proceeding and compel arbitration.” (*Rodriguez v. American Technologies, Inc.* (2006) 136 Cal.App.4th 1110, 1122.)

As explained by the Court in *Nixon v. AmeriHome Mortgage Company, LLC* (2021) 67 Cal.App.5th 934: “Section 2 is ‘the primary substantive provision of the FAA’ and ‘applies in both federal and state courts.’” (*Id.* at 944 [citing *Judge v. Nijjar Realty, Inc.* (2014) 232 Cal.App.4th 619, 631].) “[T]he procedural provisions of the CAA [the California Arbitration Act] apply in California courts by default...[T]he parties may ‘expressly designate that any arbitration proceeding [may] move forward under the FAA’s procedural provisions rather than under state procedural law.’ [Citation]. Absent such an express designation, however, the FAA’s procedural provisions do not apply in state court.” (*Nixon, supra*, 67 Cal.App.5th at p. 945.)

Per *Rodriguez v. American Technologies, Inc.* (2006) 136 Cal.App.4th 1110, “we examine the language of the contract to determine whether the parties intended to apply the FAA to the exclusion of California procedural law.” (*Id.* at pp. 1121-1122). The Court in *Rodriguez* found that language requiring arbitration “pursuant to the FAA” was broad and unconditional, such that the parties adopted *all* of the FAA. (*Id.*) “[W]hen an agreement provides that its ‘enforcement’ shall be governed by the FAA, the FAA governs a party’s motion to compel arbitration.” (See *Victrola 89, LLC v. Jamanm Properties 8 LLC* (2020) 46 Cal.App.5th 337, 346.)

Here, the 2021, 2022, 2023, and 2024 lease agreements attached an Arbitration Addendum which states, in part: “The Lease and this arbitration and class action waiver Addendum shall be governed

by, and all questions and disputes regarding arbitrability shall be determined in accordance with the Federal Arbitration Act, 9 U.S.C. Sections 1-16, notwithstanding any other choice of law provision.” (Declaration of Renee Doll (“Doll Decl.”), ¶¶ 3-6, Ex. 1-4 at pp. TIC000021-000022, TIC000044-000045, TIC000072-000073, TIC000102-000103, Arbitration Addendums, ¶ 1.) Thus, based on the express language in the Arbitration Addendum, the FAA governs the instant motion to compel arbitration.

Plaintiffs do not dispute that the FAA governs the instant motion to compel arbitration.

Existence and Validity of Arbitration Agreement

“Under ‘both federal and state law, *the threshold question presented by a petition to compel arbitration is whether there is an agreement to arbitrate.*’ [Citation].” (*Cruise v. Kroger Co.* (2015) 233 Cal.App.4th 390, 396, emphasis in original (“*Cruise*”).) The court is to determine whether a valid arbitration agreement exists, and if so, whether the agreement encompasses the dispute at issue. (*Omar v. Ralphs Grocery Co.* (2004) 118 Cal.App.4th 955, 960-961, citing *Howsam v. Dean Witter Reynolds, Inc.* (2002) 537 U.S. 79, 84; *Lifescan, Inc. v. Premier Diabetic Servs., Inc.* (9th Cir. 2004) 363 F.3d 1010, 1012.)

On a motion to compel arbitration, the court’s role is limited to deciding: “(1) whether there is an agreement to arbitrate between the parties; and (2) whether the agreement covers the dispute.” (*Brennan v. Opus Bank* (9th Cir. 2015) 796 F.3d 1125, 1130.) If these conditions are satisfied, the court is without discretion to deny the motion and must compel arbitration. (9 U.S.C. § 4; *Dean Witter Reynolds, Inc. v. Byrd* (1985) 470 U.S. 213, 218 [“By its terms, the [FAA] leaves no place for the exercise of discretion by a district court, but instead mandates that district courts shall direct the parties to proceed to arbitration.”].)

In determining the validity or “the rights of parties to enforce an arbitration agreement within the FAA’s scope, courts apply state contract law while giving due regard to the federal policy favoring arbitration. [Citations.]” (*Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC* (2012) 55 Cal.4th 223, 236; *Circuit City Stores, Inc. v. Najd* (9th Cir. 2002) 294 F.3d 1104, 1108 (“*Circuit City*”).) General principles of contract law apply to determine whether the parties have entered into a binding agreement. (*Ibid.*) Generally, an arbitration agreement must be in writing, and a party’s acceptance of an agreement to arbitrate may be express or implied in fact. (*Ibid.*) “The party seeking arbitration bears the burden of proving the existence of an arbitration agreement, and the party opposing arbitration bears the burden of proving any defense, such as unconscionability.” (*Ibid.*) Generally applicable contract defenses, such as lack of consideration and mutual assent, may invalidate an arbitration agreement. (*Circuit City, supra*, 294 F.3d at p. 1108.)

“Federal and California law treat valid arbitration agreements like any other contract and favor their enforcement. [Citations.]” (*Ramirez v. Charter Communications, Inc.* (2024) 16 Cal.5th 478, 492.) There is a liberal federal policy favoring arbitration. (*AT&T Mobility LLC v. Concepcion* (2011) 563 U.S. 333, 339.) “Although the FAA preempts any state law that stands as an obstacle to its objective of enforcing arbitration agreements according to their terms,...we apply general California contract law to determine whether the parties formed a valid agreement to arbitrate their dispute.” (*Ford Motor Warranty Cases (Ochoa)* (2023) 89 Cal.App.5th 1324, 1332.) “General contract law principles include that ‘[t]he basic goal of contract interpretation is to give effect to the parties’ mutual intent at the time of contracting.” (*Id.*) “The words of a contract are to be understood in their ordinary and popular sense.” (*Id.*) “Furthermore, ‘[t]he whole of a contract is to be taken together, so as to give effect to every part, if reasonably practicable, each clause helping to interpret the other.’” (*Id.*)

Plaintiffs do not dispute that they both executed residential lease agreements with Defendants, including the Arbitration Addendum.

The Arbitration Addendums state, in relevant part:

1. Arbitration of Disputes. Any dispute, claim or controversy arising out of or relating to this Lease or your tenancy with Landlord, including the breach, termination, enforcement, interpretation or validity thereof, and including the determination of the scope or applicability of this provision to arbitrate (“Claim” or “Claims”) shall be determined by binding arbitration in the County in which the subject Premises is located, before one neutral arbitrator. Except for the exclusions listed below, arbitration shall be the exclusive and binding remedy for any Claims between the Parties and shall be used instead of any court action or jury trial, which are hereby expressly waived The arbitrator shall have the exclusive authority to resolve any Claims, including any dispute relating to the interpretation, applicability, enforceability or formation of this agreement and any claim that all or any part of this agreement is unconscionable, void or voidable.

2. Exclusions. The following Claims are excluded from arbitration: (i) an unlawful detainer action; (ii) the filing of small claims action pursuant to California Civil Code Section 1950.5; or (iii) any other Claim within the jurisdiction of probate, small claims or bankruptcy court. This Addendum shall not preclude parties from seeking provisional remedies in aid of arbitration from a court of appropriate jurisdiction, and the filing of a court action to enable the recording of a notice of pending action, for order of attachment, receivership, injunction, or other provisional remedies, shall not constitute a waiver of this arbitration provision.

(Exs. 2-4 to Doll Decl., at pp. TIC000021-000022, TIC000044-000045, TIC000072-000073, TIC000102-000103, Arbitration Addendums, ¶¶ 1-2.)

The Arbitration Addendums were made part of the lease between Plaintiff, Heather DeBouck, and Bays Apartments Newport LLC (“Landlord”) which was executed by Irvine Management Company, its duly authorized agent. (Exs. 2-4 to Doll Decl., at pp. TIC000021-000022, TIC000044-000045, TIC000072-000073, TIC000102-000103, Arbitration Addendums, Introductory paragraph and signature lines.)

Plaintiff, Melanie DeBouck, executed a form entitled, “Change in Occupancy Lease Amendment – Addition” which provides that effective March 19, 2024, she will be added to the Lease, that she “assumes and agrees to perform and fulfill all terms, covenants, conditions, and obligations required to be performed and fulfilled under the Lease, including making all payments due to or payable to Landlord under the Lease, irrespective of whether they became due on or after the date of this Amendment”, and that “Landlord does not waive or relinquish any rights under the Lease against any Residents.” (Ex. 5 to Doll Decl., TIC000111, Change in Occupancy Lease Amendment – Addition, ¶¶ 1-3.) It also provides: “All remaining terms, conditions, covenants, rights, restrictions, and entitlements of the Lease and all addenda not expressly changed by this Amendment, including the Gross Monthly Rent and Lease End Date shall remain unmodified and continue in full force and effect.” (*Id.*, ¶ 4.)

Based on the foregoing, there exists a valid agreement to arbitrate “[a]ny dispute, claim or controversy arising out of or relating to this Lease or your tenancy with Landlord” as between Plaintiffs and Defendants.

Applicability of Arbitration Addendum to Melanie DeBouck

Defendants contend that Plaintiff Melanie DeBouck is subject to the agreement to arbitration as a third party beneficiary and is equitably estopped from refusing arbitration.

Plaintiffs do not dispute these assertions and thereby implicitly concede to these arguments. Nor do Plaintiffs dispute that Defendants may enforce the agreement to arbitrate.

The general rule is “one must be a party to an arbitration agreement to be bound by it or invoke it.” (*Westra v. Marcus & Millichap Real Estate Investment Brokerage Co., Inc.* (2005) 129 Cal.App.4th 759, 763.) Even when the FAA applies, whether a contract may be enforced by or against a nonsignatory to the contract is determined by principles of state law. (*Philadelphia Indemnity Ins. Co. v. SMG Holdings, Inc.* (2019) 44 Cal.App.5th 834, 840.) “To that, ‘there are six theories by which a nonsignatory may be bound to arbitration: “(a) incorporation by reference; (b) assumption; (c) agency; (d) veil-piercing or alter ego; (e) estoppel; and (f) third-party beneficiary.” ’ [Citation.]” (*Id.* at p. 841.) “Under the third party beneficiary theory, a nonsignatory may be compelled to arbitrate where the nonsignatory is a third party beneficiary of the contract. [Citation.] Whether a nonsignatory is an intended third party beneficiary to the contract is determined from the parties’ intent, as gleaned from the contract as a whole and the circumstances under which it arose. [Citation.]” (*Ibid.*)

Here, the Arbitration Addendum executed in 2024 states, in relevant part: “This agreement to arbitration extends to and includes Resident, Resident’s Occupants, Household Members, and any others under Resident’s control (collectively, ‘Resident’s Related Parties’). Resident acknowledges and agrees that Resident’s Related Parties are third party beneficiaries of the Lease, and that it is equitable to impose this duty to arbitrate on them.” (Ex. 4 to Doll Decl., at p. TIC000102, Arbitration Addendum, ¶ 1.) As a result, Plaintiff Melanie DeBouck is a third party beneficiary of the lease, which includes the Arbitration Addendum.

There is an exception for equitable estoppel which allows nonsignatories to compel arbitration of disputes arising out of the scope of the arbitration agreement. (*Garcia v. Pexco, LLC* (2017) 11 Cal.App.5th 782, 785-786 (“*Garcia*”); *Suh v. Superior Court* (2010) 181 Cal.App.4th 1504, 1513.) “Under this exception, ‘a nonsignatory defendant may invoke an arbitration clause to compel a signatory plaintiff to arbitrate its claims when the causes of action against the nonsignatory are “intimately founded in and intertwined with” the underlying contract obligations.’ [Citation.]” (*Garcia, supra*, 11 Cal.App.5th at p. 786.)

Plaintiff Melanie DeBouck’s claims in this action arise from her tenancy at the subject property and are intimately founded in and intertwined with the lease obligations. Therefore, she is also subject to the agreement to arbitrate based on equitable estoppel.

The Delegation Clause

Defendants contend that there is a delegation clause which delegates the scope, applicability, and enforceability of the arbitration agreement to the arbitrator.

Plaintiffs contend that the delegation clause itself is unconscionable for the same reasons the agreement to arbitrate is unconscionable.

The Ninth Circuit observed that cases in which a motion to compel arbitration is brought implicate three types of disputes: (1) the “Merits Question”—a dispute between the parties regarding the merits of an issue (*e.g.* Plaintiffs’ substantive claims against Defendants); (2) the “Arbitrability Question”—a dispute regarding whether the parties agreed to arbitrate the Merits Question (*e.g.*, whether the Contract’s arbitration provision requires Plaintiff and Defendants to Plaintiff’s claims); and (3) the “Delegation Question”—a dispute regarding whether an arbitrator or a court is tasked with deciding

the Arbitrability Question. (*SEIU Local 121RN v. Los Robles Regional Medical Center* (9th Cir. 2020) 976 F.3d 849, 852.)

“The parties to an arbitration agreement can agree in a delegation provision ‘to arbitrate “gateway” questions of “arbitrability,” such as whether the parties have agreed to arbitrate or whether their agreement covers a particular controversy.’ [Citation.] An agreement to arbitrate a gateway issue—otherwise known as a delegation provision—is simply an additional, antecedent agreement the party seeking arbitration asks ... [a] court to enforce,’ [Citations.]” (*J.R. v. Electronic Arts Inc.* (2024) 98 Cal.App.5th 1107, 1114.) “A party opposing enforcement of a delegation provision under the FAA must ‘challenge[] the delegation provision specifically.’ [Citations.]” (*Ibid.*) “Absent such a challenge, a court must treat the delegation provision as valid and enforce it, ‘leaving any challenge to the validity of [the arbitration agreement or] the [a]greement as a whole for the arbitrator.’ [Citation.]” (*Ibid.*)

“The question whether the parties have submitted a particular dispute to arbitration, *i.e.*, the ‘*question of arbitrability*,’ is ‘an issue for judicial determination [u]nless the parties clearly and unmistakably provide otherwise.’ [Citations.]” (*Howsam v. Dean Witter Reynolds, Inc.* (2002) 537 U.S. 79, 83; see also *Nelson v. Dual Diagnosis Treatment Center, Inc.* (2022) 77 Cal.App.5th 643, 654 [“ ‘Under California law, it is presumed the judge will decide arbitrability, unless there is clear and unmistakable evidence the parties intended the arbitrator to decide arbitrability’ ”].) “The delegation provision is an agreement to arbitrate threshold issues concerning the arbitration agreement.” (*Rent-A-Center, West, Inc. v. Jackson* (2010) 561 U.S. 63, 68.) “[P]arties can agree to arbitrate ‘gateway’ questions of ‘arbitrability,’ such as whether the parties have agreed to arbitrate or whether their agreement covers a particular controversy. [Citations.]” (*Id.* at pp. 68-69.)

California courts look to federal law when deciding arbitration issues under state law, have “looked to the FAA when considering delegation clauses [citation], and have long held that the rules governing these clauses are the same under both state and federal law. [Citations.]” (*Tiri v. Lucky Chances, Inc.* (2014) 226 Cal.App.4th 231, 239-240.) Parties to an arbitration agreement may agree to delegate to the arbitrator, instead of a court, questions regarding the enforceability of the agreement. (*Id.* at p. 241.) The court may consider the validity of the delegation clause. (*Id.* at p. 241, fn. 4.) For a delegation clause to be effective two pre-requisites must be met: (1) the language of the clause must be clear and unmistakable, and (2) the delegation must not be revocable under state contract defenses such as such as fraud, duress, or unconscionability. (*Id.* at p. 242.) The party seeking to enforce a delegation clause must show that it is clear and unmistakable; silence or ambiguity is insufficient. (*Ibid.*)

“This is a ‘heightened standard’ that ‘pertains to the parties’ manifestation of intent, not the agreement’s validity.’ [Citations.]” (*Mendoza v. Trans Valley Transport* (2022) 75 Cal.App.5th 748, 772.) “The ‘clear and unmistakable’ test applies under both the FAA and California law. [Citation.]” (*Ibid.*) “[A] court must look to the *precise nature of the claim* that the party resisting arbitration is making. If it is claiming that it never agreed to the arbitration clause at all—e.g., if it is claiming forgery or fraud in the factum—then the court must consider that claim. On the other hand, if it is not denying that it agreed to the arbitration clause, but instead is claiming some other defense to enforcement of the arbitration clause—e.g., illegality or fraud in the inducement—then the court must enforce the ‘arbitrability’ portion of the arbitration clause by compelling the parties to submit that defense to arbitration.” (*Bruni v. Didion* (2008) 160 Cal.App.4th 1282, 1287.)

Here, the Arbitration Addendums state, in part: “The arbitrator shall have the exclusive authority to resolve any Claims, including any dispute relating to the interpretation, applicability, enforceability or

formation of this agreement and any claim that all or any part of this agreement is unconscionable, void or voidable. (Ex. 4 to Doll Decl., at p. TIC000102, Arbitration Addendums, ¶ 1.) As such, the delegation clause in the Arbitration Addendum is clear and unmistakable, and the delegation clause expressly delegates the applicability and enforceability of the agreement to arbitrate “and any claim that all or any part of this agreement is unconscionable” to the exclusive authority of the arbitrator. Although Plaintiff claims that the delegation clause itself is unconscionable, Plaintiff does not actually challenge the delegation clause specifically. Instead, Plaintiff relies on the same argument as to the asserted unconscionability of the agreement to arbitrate as a whole, i.e., the delegation clause appears in the same standardized Arbitration Addendum, and the arbitration agreement lacks mutuality because Plaintiffs’ tenancy-related claims, including threshold challenges to arbitration, are directed to a private forum, while the Arbitration Addendum expressly preserves a judicial forum for unlawful-detainer proceedings.

There is a clear and unmistakable delegation clause delegating questions of applicability, enforceability, and unconscionability to the arbitrator.

Defendants’ motion to compel arbitration is **GRANTED**.

The action is **stayed pending completion of arbitration**. (9 U.S.C. § 3.)

Defendants to give notice.